

9. 24CV02337 Fink, Paul et al v. Fink, Erika et al.

EVENT: Defendant Erika Fink's Motion to Stay the Action Pending Resolution of the Related Divorce Proceedings

The motion for stay is granted. However, the Court sees no reason to stay discovery, consequently discovery will remain open. Although the Court is not finding any potential conflicts between this case and the Family Law case on the surface, the Court is erring on the side of caution.

Any party may file a motion to lift the stay once the Family Law case has adjudicated all issues with respect to the characterization of property.

Defendant shall prepare the form of order within two weeks.

10. 25CV00186 Estate of Tyler Simmons et al v. Sladariu, Benjamin

EVENT: Motion to Compel Compliance with Deposition Subpoena of Business Records

Preliminarily, the District Attorney's objections were not waived. Privileges are preserved unless the holders fail to object in a proceeding where they have standing and the opportunity to claim them. (*Monarch Healthcare v. Superior Court* (2000) 78 Cal.App. 4th 1282, 1290) [Emphasis Added] Additionally, the DA has represented that it has produced all documents other than those that were not generated by the DA and those subject to work product privilege. Thus, the motion is moot to the extent documents have been produced.

To the extent the subpoena seeks documents that were not generated by the DA, it is well settled that it is not required to produce such documents. (See *Cooley v. Superior Court* (2006) 140 Cal.App.4th 1039, 1041) Regarding the work product privilege, the DA has established attorney Jennifer Bennett's notes and related materials are privileged.